

**IN THE HIGH COURT OF PUNJAB AND HARYANA AT CHANDIGARH**

CRM-M-33695-2026
Date of decision: 17.06.2026

Manjit Singh and another

...Petitioners

Versus

State of Punjab

...Respondent

CORAM: HON'BLE MR. JUSTICE DEEPAK GUPTA

Present: Mr. Manjot Singh Rai, Advocate for the petitioners.

DEEPAK GUPTA, J. (ORAL)

By way of this petition filed under Section 482 of BNSS 2023 (corresponding to Section 438 Cr.P.C), the two petitioners pray for grant of anticipatory bail in case FIR No.16 dated 19.09.2025, under Sections 420, 406, 427, 120-B of IPC (now Sections 318(4), 316, 324 and 61 of BNS, 2023), registered at Police Station NRI Hoshiarpur, District Hoshiarpur.

2. At the very outset, it deserves to be noticed that the present petition is the second petition seeking the same relief of anticipatory bail. The earlier petition bearing CRM-M-57941-2025 was considered and dismissed on merits by a co-ordinate Bench of this Court vide a detailed order dated 10.04.2026 (Annexure P-3). When queried, learned counsel for the petitioners is unable to point out any substantial change in circumstances occurring subsequent to the dismissal of the earlier petition, except to submit that the parties have allegedly entered into a compromise.

3. The aforesaid submission does not persuade this Court to entertain the present successive petition. It is well settled that a second or successive petition for anticipatory bail is maintainable only upon the existence of a material change in circumstances after rejection of the earlier petition. Mere repetition of grounds already considered or reliance upon



circumstances which do not have a direct bearing on the necessity of custodial interrogation cannot furnish a fresh cause of action for seeking the same relief.

4. In the present case, even the alleged compromise does not advance the case of the petitioners. The record reveals that despite dismissal of the earlier petition, the petitioners have not joined investigation and have failed to cooperate with the Investigating Agency. A person who remains unavailable for investigation and avoids compliance with lawful directions cannot seek the discretionary relief of anticipatory bail merely on the basis of a subsequent compromise. Such conduct militates against the very requirement of cooperation with the investigation, which is one of the relevant considerations governing the grant of pre-arrest bail.

5. Moreover, the alleged compromise by itself cannot be treated as a change in circumstance sufficient to reopen an issue already adjudicated upon by a co-ordinate Bench, particularly when the petitioners have continued to remain non-cooperative in the investigation. Entertaining such successive petitions in the absence of any genuine change in circumstances would amount to permitting repeated attempts to secure the same relief, which is impermissible in law.

6. In view of the above, this Court finds no ground to take a view different from the one already taken by the co-ordinate Bench while declining anticipatory bail to the petitioners. The present petition is, therefore, dismissed.

17.06.2026

Yogesh

**(DEEPAK GUPTA)
JUDGE**

Whether speaking/reasoned:- Yes/No
Whether reportable:- Yes/No